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[TENTATIVE] ORDER GRANTING PLAINTIFFS' MOTION FOR LEAVE TO FILE A FIRST AMENDED COMPLAINT

I. INTRODUCTION

This is a medical negligence action arising from treatment Plaintiff Arpa Rostami ("Plaintiff") received at USC Verdugo Hills Hospital's emergency department on April 24, 2024. Plaintiff and spouse Armen Rostami (collectively, "Plaintiffs"), allege Defendants USC Verdugo Hills Hospital, Julie Sayegh, M.D., and Kelley Lu, PA-C (collectively, "Defendants") failed to timely diagnose Plaintiff's appendicitis, resulting in a ruptured appendix, sepsis, and other injuries. The operative Complaint was filed on April 15, 2025, and alleges causes of action for medical negligence and loss of consortium.

On July 6, 2026, Plaintiffs filed the instant motion for leave to file a First Amended Complaint(FAC). On July 17, 2026, Defendants filed an opposition and on July 22, 2026, Plaintiffs filed their reply.

II. LEGAL STANDARD

Code of Civil Procedure section 473, subdivision (a) provides: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc., § 473, subd. (a)(1); see Code Civ. Proc., § 576.)

Permissible amendments pursuant to Code of Civil Procedure section 473, subdivision (a) include amendments which add causes of action. A plaintiff that fails to plead a cause of action arising out of the transaction or occurrence that gave rise to the complaint may apply to the court for leave to amend the complaint to assert the cause of action, whether that failure was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50; see Code Civ. Proc., § 426.10, subd. (c).) The motion to amend may be filed at any time during the course of the action, on notice to the adverse party. (Id., § 426.50.)

The court has broad discretion to permit amendments to pleadings, and "the court's discretion will usually be exercised liberally to permit amendment of the pleadings." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Ibid.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend . . ." (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes "delay in trial, loss of critical evidence, or added costs of preparation." (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435,

A motion to amend a pleading before trial must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, Rule 3.1324, subd. (a)(1).) A motion to amend a pleading must also be supported by a declaration which specifies the following: (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Cal. Rules of Court, Rule 3.1324, subd. (b).)

III. ANALYSIS

Plaintiffs move for leave to file a First Amended Complaint pursuant to Code of Civil Procedure sections 473, subdivision (a)(1), and 576. Plaintiffs contend amendment is necessary to conform the pleadings to facts established through Defendants verified discovery responses served on June 2, 2026. Specifically, Plaintiffs assert those responses establish that Defendant Kelley Lu, PA-C did not consult with any physician regarding Plaintiff Arpa Rostami's care and that Defendant Julie Sayegh, M.D., as the supervising physician, did not personally examine, evaluate, treat, or review Plaintiff's care. Plaintiffs argue these facts support adding a third cause of action for corporate/institutional negligence against Defendant USC Verdugo Hills Hospital and clarifying Dr. Sayegh's supervisory role. Plaintiffs further contend the proposed amendment arises from the same operative facts, adds no new parties, and will not prejudice Defendants because trial is not scheduled until March 23, 2027. (Motion, pp. 3-7.)

Defendants oppose the motion, arguing Plaintiffs waited too long to seek leave to amend and that allowing the amendment at this stage would prejudice Defendants. Defendants argue that the proposed amendment would require additional written discovery, further depositions, and additional trial preparation. Defendants also argue the proposed corporate negligence claim is legally futile because it is duplicative of Plaintiffs' existing medical negligence claim and relies on statutes that do not create a private right of action. Finally, Defendants contend the facts supporting the proposed amendment were apparent from the medical records produced in August 2025, such that Plaintiffs have not shown good cause for waiting nearly a year to seek leave to amend. (Opposition, pp. 3-10.)

The Court finds leave to amend is warranted. California courts apply a liberal policy favoring amendment of pleadings so that cases may be resolved on their merits. Here, the proposed amendment does not add any new parties and arises out of the same operative facts alleged in the original Complaint. Plaintiffs seek to assert an additional theory of liability based upon information obtained during discovery concerning the supervision of Plaintiff's care. Trial is not scheduled until March 23, 2027, mediation remains several months away, and discovery is still ongoing. Although Defendants contend the amendment will require additional discovery and increase litigation costs, they have not demonstrated substantial prejudice sufficient to warrant denial of leave to amend.

The Court is likewise unpersuaded by Defendants' futility arguments. Whether Plaintiffs may ultimately establish an independent basis for hospital liability, and whether the cited statutes provide an appropriate basis for the proposed claim, are issues more appropriately addressed through subsequent motion practice, including demurrer, rather than on a motion for leave to amend.

The Court further finds that Plaintiffs have complied with California Rules of Court, rule 3.1324. Plaintiffs' declaration explains the effect of the proposed amendment, why it is necessary, when the facts supporting the amendment were discovered, and why the request was not made earlier. Plaintiffs also attached the proposed First Amended Complaint, along with a redlined version identifying the proposed changes. (Rostami Decl., ¶¶ 4-7, Exhs. 1-2.)

Based on the foregoing, the Court GRANTS Plaintiff's motion for leave to file a FAC.

IV. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motion for leave to file a FAC. Plaintiff must file the FAC within 20 days' notice of this order.

Plaintiff is to give notice.

Dated: July 30, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT